

Smt. Rekha vs Sanjeet Kumar on 18 May, 2026

Author: Yogendra Kumar Srivastava

Bench: Yogendra Kumar Srivastava

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2026:AHC:114979

HIGH COURT OF JUDICATURE AT ALLAHABAD

TRANSFER APPLICATION (CIVIL) No. - 393 of 2025

Smt. Rekha

.....Applicant(s)

Versus

Sanjeet Kumar

.....Opposite Party(s)

Counsel for Applicant(s)

:

Satya Narayan Yadav

Counsel for Opposite Party(s)

:

Kamlesh Singh

Court No. - 35

HON'BLE DR. YOGENDRA KUMAR SRIVASTAVA, J.

Heard Sri Praveen Kumar Rajpoot, holding brief of Sri Satya Narayan Yadav, learned counsel for the applicant and Sri Kamlesh Singh, learned counsel for the opposite party.

Present application has been filed, seeking transfer of Case No.100 of 2025 (Sanjeet Kumar vs. Km. Rekha) under Section 13 of the Hindu Marriage Act, 1955 from the Court of Principal Judge, Family Court, Mainpuri to a Court of competent jurisdiction at Firozabad.

Upon considering the facts of the case and the inconvenience pleaded on behalf of the applicant that she was facing problems in attending the proceedings of the aforesaid case at Mainpuri, this Court on 30.5.2025, directed issuance of notice to the opposite party and stayed the further proceedings of the aforesaid case.

It has been pleaded that the marriage of the applicant was solemnized with opposite party on 25.2.2020. The applicant was thereafter subjected to cruelty and harassment for demand of dowry. The applicant is presently residing with her aged father at Firozabad.

The applicant has asserted that she has no independent source of income and, therefore, she would face grave hardship in contesting the proceedings at Mainpuri. It is further asserted that no amount towards maintenance is being paid to the applicant by the opposite party.

An application, bearing no.260 of 2022 (Smt. Rekha vs. Sanjeet Kumar) under Section 125 of Cr PC has been filed by the applicant before the Court of Principal Judge, Family Court at Firozabad, which is still pending. Case No.1687 of 2022, under Sections 3, 14, 17, 18, 19, 20, 21 and 22 of the Protection of Women from Domestic Violence Act, 2005 has been filed by the applicant before the concerned Court at Firozabad. An application under Section 156 (3) of Cr PC has also been moved by the applicant before the concerned Court at Firozabad.

Counsel for the opposite party, on instructions, submits that the opposite party has 'no objection' to the case being transferred from Mainpuri to Firozabad.

This Court, in its recent decisions in Smt. Akansha Saxena v. Shikhar Saxena, 2026 (3) ADJ 104 and Smt. Arju @ Vimal v. Umakant Parasar, 2026 (3) ADJ 66 has observed that in matrimonial cases, the convenience of the wife must be looked into; the cardinal principle for exercise of power under Section 24 CPC being that the ends of justice should be subserved.

Having regard to the aforesaid and particularly in view of the hardship that has been pleaded by the applicant and the categorical "No Objection" expressed on behalf of the opposite party, this Court is

of the considered opinion that the present case is a fit one for exercise of power under Section 24 CPC. The transfer sought, being by consent of the parties and in furtherance of justice, deserves to be allowed.

Accordingly, the Civil Misc. Transfer Application is allowed with the following directions :

(i) The proceedings of Case No.100 of 2025 (Sanjeet Kumar vs. Km. Rekha) under Section 13 of the Hindu Marriage Act, 1955, are hereby withdrawn from the Court of the Principal Judge, Family Court, Mainpuri and transferred to the Court of the Principle Judge, Family Court, Firozabad.

(ii) The Principal Judge, Family Court, Mainpuri is directed to transmit the entire case record to the Transferee Court at District Firozabad within fifteen days from the date of receipt of a certified copy of this order.

(iii) The Transferee Court shall proceed with the matter from the stage at which it was transferred and shall endeavor to conclude the proceedings expeditiously.

(Dr. Yogendra Kumar Srivastava,J.) May 18, 2026 RKK/-Arun Kr Singh